

explicitly alleged. The only references to a conspiracy are conclusory and relate to alleged misrepresentations by others that purportedly caused cross-complainants to purchase their property. Without more, the cross-complaint does not adequately allege that the HOA participated in a conspiracy to conceal adverse claims on title.

Accordingly, the demurrer as to this cause of action is sustained, with leave to amend.

C. Seventh and Eighth Causes of Action (Equitable Indemnification and Equitable Contribution)

The HOA demurs to these causes of action on the basis that there is no underlying liability that would give rise to them. The HOA points to plaintiffs' principal complaint, which alleges only quiet title and declaratory relief causes of action.

Cross-complainants, without citing any authority, respond that plaintiffs also seek "costs of suit," and these are damages for purposes of these causes of action.

"It is well settled in California that equitable indemnity is only available among tortfeasors who are jointly and severally liable for the plaintiff's injury." (*Stop Loss Ins. Brokers, Inc. v. Brown & Toland Medical Group* (2006) 143 Cal.App.4th 1036, 1040, citations omitted.) With limited exception, there must be some basis for tort liability against the proposed indemnitor. (*Ibid.*) Equitable contribution also applies with respect to a "right to recover from a co-obligor" a portion of a "money judgment." (See *Crowley Maritime Corp. v. Boston Old Colony Ins. Co.* (2008) 158 Cal.App.4th 1061, 1067; Code Civ. Proc., § 875 (a) [where money judgment rendered jointly against two or more defendants in a tort action, there is right of contribution among them].)

Because the underlying complaint in this action is not one for money damages, the demurrer is sustained with respect to the seventh and eighth causes of action, with leave to amend.

8. 9:00 AM CASE NUMBER: C24-02677
CASE NAME: AMERICAN MLB FEDERAL INVESTMENTS VS. SHERI KELLEHER
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF CROSS-COMPLAINT OF SHERI KELLEHER AND PAUL JONATHAN**
FILED BY: SANDERS RANCH HOMEOWNERS ASSOCIATION
TENTATIVE RULING:

Denied as moot. Please see Line 7.

9. 9:00 AM CASE NUMBER: C25-01047
CASE NAME: IRIS FLORES HERNANDEZ VS. SIPRIANO ORELLANA FUENTES
***HEARING ON MOTION IN RE: COMPEL DEFENDANT'S RESPONSE TO PLAINTIFFS' DEMAND FOR INITIAL DISCLOSURES UNDER CAL. CODE OF CIV. PROC. 2016.090 AND FOR MONETARY SANCTIONS**
FILED BY: FLORES HERNANDEZ, IRIS
TENTATIVE RULING:

On October 15, 2025, Plaintiffs made a demand pursuant to Code of Civil Procedure 2016.090 for Initial Disclosures. They made this demand by email. They have not received a response to their

demand. They filed this Motion on January 23, 2026. The Court received no timely opposition. It would appear that Defendant has failed to comply with its discovery obligations. Defendant is ordered to provide initial disclosures pursuant to section 2016.090 within 15 days of the date of hearing. Defendant is also ordered to pay \$1,500 in sanctions within 30 days of the date of hearing. C.C.P. § 2023.030.

10. 9:00 AM CASE NUMBER: C25-01307
CASE NAME: MARKEE WEBB VS. SAN PABLO MEDICAL CENTER
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: SAN PABLO MEDICAL CENTER

TENTATIVE RULING:

The Demurrer of Defendants Jim Pehling, M.D. (erroneously sued as Jim Phlying) and San Pablo Medical Center to the First Amended Complaint of Plaintiff Markee Webb is **sustained, with leave to amend**.

BACKGROUND

Plaintiff Markee Webb filed his original complaint against Jim Pehling, M.D. and San Pablo Medical Center on May 8, 2025, using a Judicial Council form complaint for breach of contract. The complaint attaches medical records from West County Health Center reflecting two visits. In January 2024, Plaintiff was seen for health care maintenance, depression, and obesity. In May 2024, Plaintiff was seen for a cerebrovascular accident and hypertension, resulting in medication changes and advice to lose weight. Paragraph five of the form complaint, which calls for an allegation of compliance with the Government Claims Act (GCA), was left blank.

The record does not reflect a proof of service of the original complaint. Nevertheless, Defendants filed and served a demurrer to the original complaint on June 16, 2025, noticed for hearing on October 16, 2025. Before that hearing occurred, Plaintiff filed and served a first amended complaint (FAC) on October 3, 2025, mooting the demurrer. As with the original complaint, Plaintiff's FAC does not allege compliance with the GCA.

Plaintiff presented a government claim to the Clerk of the Board of Supervisors of Contra Costa County on or about September 23, 2025. In response to the claim form's question "When did the damage or injury occur," Plaintiff wrote "1/5/24 - and ongoing." The Clerk rejected the claim on October 8, 2025 on the ground that it was not presented within six months after the event or occurrence as is required by Government Code sections 901 and 911.2. The Clerk's notice advised Plaintiff that his "only recourse at this time is to apply without delay to the Board of Supervisors of Contra Costa County for leave to present a late claim" under Government Code sections 911.4 to 912.2 and 946.6. It does not appear that Plaintiff filed an application with the County for leave to present a late claim.

Defendants demur to the FAC that Plaintiff failed to allege facts demonstrating or excusing compliance with the GCA. Defendants argue that no amendment can cure this defect because plaintiff filed suit before presenting any claim, and because the claim itself was presented outside the six-month period set by Government Code section 911.2, measured from an accrual date of January 5, 2024.